

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

October 12, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Ash, and pursuant to support received by Dr. Rinne and Mr. Pierson, agenda item #19(a) was removed from the Consent Agenda. Mr. Collins moved to approve the remaining Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON SEPTEMBER 28, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON OCTOBER 5, 2009. Motion (per Consent Agenda) carried.

Mr. Collins moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services (\$30,437.50) and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

"AN ORDINANCE AMENDING VARIOUS SECTIONS OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.68, BODY ART ESTABLISHMENTS AND OPERATIONS, OF THE CODE OF THE CITY OF CHEYENNE." Reporting for Finance Committee, Mr. Spiker moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body. (#3871)

"AN ORDINANCE AMENDING TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.04, BUSINESS LICENSES GENERALLY, SECTION 5.04.030, TYPES OF BUSINESSES, ACTIVITIES AND EVENTS, AND CHAPTER 5.08, BUSINESS LICENSE FEES, SECTION 5.08.250, BODY ART ESTABLISHMENTS AND OPERATIONS, OF THE CODE OF THE CITY OF CHEYENNE, PERTAINING TO BODY ARTISTS AND PERMIT FEES." Mr.

Spiker moved to approve on third and final reading, seconded by Mr. Valdez. Upon inquiry, City Clerk Carol Intlekofer clarified the ordinance establishes fees for a body artist permit that was created by the previous ordinance on the agenda, and Gary Hickman, Cheyenne-Laramie County Health Department, Environmental Health Division, explained the National Environmental Health Association's code was followed in drafting revisions to the previous agenda item with the inclusion of licensing body artists individually and requiring them to have blood borne pathogen training among other requirements. Motion carried. Voting "yes" – all members of the governing body. (#3872)

"AN ORDINANCE DELETING SECTION 10.56.060, PERMIT FEE-PAYMENT, AND SECTION 10.56.100, INSTALLATION COST-PAYMENT, OF CHAPTER 10.56, HANDICAPPED PARKING SPACES, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE." Mr. Spiker moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body. (#3873)

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW DENSITY RESIDENTIAL-DEVELOPING DISTRICT TO MR-1 MEDIUM DENSITY RESIDENTIAL-ESTABLISHED DISTRICT FOR LOTS 1- 8, BLOCK ONE; LOTS 1- 8, BLOCK TWO; LOTS 1- 4, BLOCK THREE; GOODWATER ADDITION, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO VAN BUREN AVENUE, SOUTH OF DELL RANGE BOULEVARD)." Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" – all members of the governing body. (#3874)

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM PUD PLANNED UNIT DEVELOPMENT DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR ALL OF BLOCK ONE, CATHEDRAL COMMONS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF YELLOWSTONE ROAD AND GARDENIA DRIVE)." Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body. (#3875)

"AN ORDINANCE AMENDING SECTION 12.04.010 OBSTRUCTION ON STREETS, AND SECTION 12.04.080, CONSTRUCTION AND REPAIR-PERMITS REQUIRED-FEES-EXCEPTION, OF CHAPTER 12.04, STREETS, SIDEWALKS AND DRIVEWAYS GENERALLY, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING." Mr. Spiker moved to approve on second reading, seconded by Ms. Broyles. Upon inquiry regarding the proposed ordinance regulating the placement of storage containers and other types of obstructions in the public right-of-way, Nathan Beauheim, City Engineer's office, advised issuing permits for placement of containers or obstructions in front of a neighboring property was not specifically addressed in the ordinance, but that a proposed policy in conjunction with the ordinance is being formulated, and stated there was no grace period provided for in the ordinance. Upon inquiry, City Attorney Dan White clarified the violation for penalties affiliated with the ordinance would be pursuant to the general penalty provisions of city code and briefly reviewed the provisions. Discussion followed regarding the allowance of a grace period, permit enforcement, permit fee, and costs

generally for rental of a storage container. Mr. Valdez moved to amend the permit fee in Section 12.04.080, Section B, from \$7.50/day to \$5.00/day, seconded by Mr. Pierson. Mr. Beauheim requested a typographical error be corrected in Section 12.04.080, Section B, on the same line as the fees, to amend the word “of” to “a”. Upon inquiry, Mr. Beauheim addressed staffing cost estimates to enforce permit time frames, companies providing storage containers, types of containers that will be affected by the ordinance, placement of landscaping materials in the right-of-way, certain containers creating traffic hazard conditions, and issues with current engineering right-of-way permits not having expiration dates and compliance with the Clean Water Act involving drainage of materials into the storm sewer system. Further discussion followed. Upon inquiry, Mr. White reviewed the purpose of the ordinance, stating it is to address storage of personal property on City rights-of-way including landscaping materials and large storage containers, and stated debris washing into the storm sewers from certain stored materials violates water regulations and that the ordinance will help with environmental issues. Upon inquiry, Jim Elias, Public Works Director, clarified the difference in size between commercial dumpsters and roll-off containers, and Mr. Beauheim advised that they are working with Sanitation to enable that office to also issue permits. Dr. Rinne raised a point of order indicating comments being made were not pertinent to the motion on the floor with Mayor Kaysen advising comments should remain germane to the motion to amend the permit fee. Motion to amend to reduce the permit fee to \$5.00/day, including a clerical correction to change the word “of” to “a” per Mr. Beauheim’s request, carried. Voting “yes” - all members of the governing body. Ms. Ash moved to amend to permit a 3 day grace period where no fees would be assessed (i.e. first 3 days of permit term would involve no fee), seconded by Mr. Pierson. Following discussion and a point of information on the motion being raised by Mr. Collins, Ms. Ash modified her motion for a 3 day grace period to clarify that individuals would have 3 calendar days to place items in the right-of-way before having to obtain a permit with payment of fees. Mr. Pierson concurred with the modification as second to the initial motion to amend. Motion to amend, as modified, carried. Voting “yes” – Ms. Ash, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting “no” – Mr. Brown, Ms. Broyles and Ms. Case. Upon inquiry, Mr. Beauheim advised a permit would probably not be issued for a scenario involving blocking of a sidewalk, but if a temporary obstruction was needed to be placed in a certain location for removal of debris which might block a sidewalk, then provisions would be required to provide for passage of pedestrians. Martin Matsen, Development Director, provided information on current landscaping regulations relative to private vs. public right-of-way property, stating the nuisance ordinance may apply in some instances; advised a temporary use permit may be needed for placement of landscaping materials on private property, and referenced zoning setback requirements. Main motion as twice amended carried. Voting “yes” – Ms. Ash, Ms. Broyles, Mr. Collins, Mr. Pierson, Mr. Spiker and Mr. Valdez. Voting “no” – Mr. Brown, Ms. Case, Dr. Rinne and Mayor Kaysen.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED, AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM P PUBLIC DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR LOT 2, BLOCK ONE, WINDMILL ROAD, SECOND FILING, (A PORTION OF THE NE1/4 OF SECTION 28, T.14N., R.66W., 6TH P.M.) CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF DELL RANGE BOULEVARD AND WINDMILL ROAD)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] "A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE TO ENTER INTO PRELIMINARY NEGOTIATIONS WITH THE BOARD OF DIRECTORS OF THE CHEYENNE LITTLE THEATRE PLAYERS FOR THE PURCHASE OF THE ATLAS THEATER." Motion (per Consent Agenda) carried. (#5166)

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR WINDMILL ROAD, SECOND FILING, A PORTION OF THE NE1/4 OF SECTION 28, T.14N., R.66W., 6th P.M., CHEYENNE, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF DELL RANGE BOULEVARD AND WINDMILL ROAD)" -- referred to Public Services Committee (sponsor - Mr. Brown).

LEASES/CONTRACTS/LEGAL:

[CA] Grant Award Agreement between the City of Cheyenne, Police Department, and Wyoming Office of Homeland Security, for Law Enforcement Terrorism Prevention Activities -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 1 to Contract No. 5350 between the City of Cheyenne and A.V.I. P.C. for construction administration of the Carey Ave. and Pioneer Ave. Rehabilitation Project (2007-2010 1% Sales Tax). Bruce Perryman, AVI representative, briefly reviewed the history of the Carey Ave./Pioneer Ave. Rehabilitation project which encompasses 13 blocks in the downtown area, and explained the project has evolved to become more complex with lots of intricacies in the design due to the challenges involved with the downtown area, which include sensitivity to businesses during the rehabilitation to be able to make and receive deliveries; sanitation pick-up services; emergency response accessibility; driveway approaches and ADA sidewalk components; traffic features, etc. He discussed street reflective cracking and rutting conditions, and issues involved with an initial design prepared by one engineering firm if transferred later to a different engineering firm. He advised the project will include storm sewer system upgrades, and described special materials that will be used to enhance street durability. Mr. Spiker reported there was no recommendation on the item from Finance Committee. Mr. Spiker moved to approve, seconded by Mr. Collins. Upon inquiry, Mr. Perryman advised the City has all of the design plan information their firm has generated. Comments followed on the increase in contract price from its initial inception, best use of taxpayers' funds, and lack of opportunity for other firms to submit bids relative to construction management services under the modification. Upon inquiry, Doug Vetter, City Engineer, provided information on other contract modifications that are anticipated; explained it is not unusual to have contract modifications due to the scope of a project constantly changing, and verified the original contract was competitively bid. During query on the project's funding sources, Mr. Vetter provided additional information on funding of projects of this type generally, and discussed how and why it had been determined that outside construction management was needed for the project; efficiency and cost savings of having AVI provide construction management of a project it designed, and potential use of excess funds from the depot plaza operations/restroom building project toward this project. Mr. Spiker clarified his motion to approve should have also included the dollar amount (not to exceed) of \$366,845.00. Mr. Collins concurred with the clarification as second to the motion. City Treasurer Barb Dorr reviewed the funding sources for the project as follows: 5th Penny 1% sales tax, State Loan and Investment Board (SLIB) grant, traffic signals and miscellaneous concrete budget line items and Board of Public Utilities

(BOPU) funds. During inquiry concerning transferring of funds from one project to another, Ms. Dorr reviewed the process for transferring money and Mr. Beauheim clarified several line items involving allocated sales tax funds are being combined and that the use and purpose of the funding has not changed. Concerns were expressed regarding the initial contract bid documents not including provisions for construction management; future bid documents containing design and potential construction management services in the scope of services for these types of projects, and the process utilized to transfer funds within the budget. Mr. Vetter provided information on streetscaping elements, which are the same as the Downtown Development Authority's (DDA) streetscape design, and explained the streetscape components were initially separated out as an alternate to the project. Laura Page, City Engineer's office, reviewed project funding sources and amounts, and verified the streetscaping elements were an alternate in the initial construction bid. Mr. Vetter stated future plans are to change the bid process for projects of this type to include construction management oversight as an option, stating that for some projects City staff may be able to provide these services. Upon inquiry regarding use of 1% sales tax traffic signal monies for the project, Mr. Beauheim advised other areas will not be sacrificed as the downtown traffic signals have been included in the line item as a priority, and Mr. Vetter clarified staff could look at working further with the consultant to ascertain any areas that may lower project costs through partnering of services. Mr. Spiker moved to postpone for 2 weeks (to Oct. 26, 2009) to allow time for staff to visit further with AVI on services to be provided, seconded by Mr. Brown. Upon inquiry regarding the effect a postponement would have on the project construction time frame, Mr. Vetter advised if the construction contract (Clerk's note: Refer to relating agenda item later in meeting concerning a contract with Reiman Corp. for project construction services) is awarded then two weeks should not affect the construction process, and stated, with regard to sharing project management responsibilities, that potentially, based upon the expertise needed and staffing levels available, City Engineering staff may be able to assist AVI in sharing some responsibilities. Upon further inquiry, Mr. Vetter confirmed it is not uncommon to change the scope of a project the size of this one due to when estimated project costs are forecasted vs. construction cost environments at the time of construction. Motion to postpone failed. Voting "yes" – Mr. Brown, Ms. Broyles and Mr. Spiker. Voting "no" – Ms. Ash, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Main motion to approve in an amount not to exceed \$366,845.00 carried. Voting "yes" – all members of the governing body with the exception of Ms. Ash, Ms. Broyles and Dr. Rinne voting "no". (#5350)

[CA] Contract Modification No. 3 to Contract No. 5260 between the City of Cheyenne and Tarco, Inc. for additional grading and concrete work around the new Greenway section and new restrooms in Cahill Park (1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$18,751.21). (#5260)

[CA] Contract Modification No. 5 to Contract No. 5280 between the City of Cheyenne and Reiman Corporation for reduction of retainage for the Norris Viaduct Project (2003-2006 1% Sales Tax; 1% Specific Purpose Sales and Use Tax; SLIB; TEAL; and BOPU Grants) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-5-10 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corp., for the Carey Ave. and Pioneer Ave. Rehabilitation Project (2007-2010 1% Sales Tax). Mr. Spiker moved to accept the bid from Reiman Corp. in an amount not to exceed \$3,781,821.83, seconded by Mr. Collins. Upon inquiry, Laura Page, City Engineer's office,

provided information pertaining to the miscellaneous force account and project funding sources, including BOPU's funding involvement. Concern was expressed with language contained in a memorandum issued by City staff with regard to governing body approval not being required on contract modifications affiliated with monies in the force account. Motion carried. Voting "yes" – all members of the governing body. (#5468)

[CA] Consideration of Bid #M-8-10 for a contract between the City of Cheyenne, One Percent Construction Division, and L&M Construction Co., for the FY 2009 Crack Seal Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried in an amount not to exceed \$745,000.00. (#5469)

[CA] Consideration of Bid #M-10-10 for a contract between the City of Cheyenne, Special Projects Division, and Spiegelberg Lumber and Building Co., of Laramie, WY for the construction of the Operations and Restroom Facility for the Cheyenne Depot Plaza Project (State Loan & Investment Board). Motion (per Consent Agenda) carried in an amount not to exceed \$785,000.00. (#5470)

[CA] Consideration of Bid #M-7-10 for a contract between the City of Cheyenne and Desert Mountain Corporation, Riverton, WY, for furnishing 3000 tons of bulk ice control product, for the Public Works Department for use on City streets (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-9-10 for a contract between the City of Cheyenne and Recco, Inc. D/b/a Five-R Co., for construction of the addition to the Transfer Station Project (State Loan & Investment Board) -- referred to Finance Committee.

APPOINTMENTS:

Re-appointment of Judith Lane to the Cheyenne Housing Authority Board. Mr. Brown moved to approve, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Appointment of Esther Davison, Dave Serelson, Dr. Richard Berry, Jeff Lamm, Gus Lopez, Jeff Schulz, Danny Glick, Bill Long, Melinda McCorkle, Gay VanHorn, and Rick Robinson to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

ANNOUNCEMENTS/REPORTS/MOTIONS:

[CA] Annual Report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course and Airport Golf Course Club House as required by Lease Agreement. Motion to acknowledge receipt of report (per Consent Agenda) carried.

Announcement was made of the appointment of Kadi Davis, Joshua Herr, Taylar Perez, Katherine Poffenbarger, Kelsey James, Karolyn Hopfensperger, Dean Jackson, Alissa Aylward, Blake Soule, Samantha Heitsch, Gary Sayler, Mashayla Still and Ashley Ortiz to the Mayor's Youth Council, to be confirmed October 26, 2009.

OTHER CITY BUSINESS:

Comment was made regarding recent letters to the editor contained in the local newspaper as well as its online blogs expressing concerns with animal control officers and customer service. Mayor Kaysen stated he has been in contact with the Animal Shelter/Control director regarding the matter.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:53 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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